

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[843 NE2d 1143, 810 NYS2d 403]

In the Matter of LAURA D. BLACKBURNE.

Decided December 5, 2005

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion pursuant to NY Constitution, article VI, § 22 (e) and (g) and Judiciary Law § 44 (8) (a) and (c), of whether Honorable Laura D. Blackburne should be suspended from the office of Justice of the Supreme Court, Queens County, pending disposition of her request for review of a determination by the State Commission on Judicial Conduct.

HEADNOTE

Judges — Suspension from Office

Upon consideration by the Court of Appeals on its own motion, pursuant to NY Constitution, article VI, § 22 (e) and (g) and Judiciary Law § 44 (8) (a) and (c), of whether a Supreme Court Justice should be suspended from office, it is determined that the Justice be suspended, with pay, effective immediately.

APPEARANCES OF COUNSEL

Richard Godosky, New York City, for Laura D. Blackburne.

OPINION OF THE COURT

On the Court's own motion, it is determined that Honorable Laura D. Blackburne is suspended, with pay, effective immediately, from the office of Justice of the Supreme Court, Queens County, pending disposition of a request for review of a determination by the State Commission on Judicial Conduct.

Concur: Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH.

[843 NE2d 1143, 810 NYS2d 403]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NICOLE
BUONINCONTRI, Appellant.

Decided December 15, 2005

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 9, 2005. The Appellate Division affirmed a judgment of the Supreme Court, Rockland County (Kenneth Resnik, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree and robbery in the second degree.

The Appellate Division concluded that defendant's claim that she was denied the right to be present during robing room discussions with potential jurors concerning issues of possible bias or hostility, supported only by the absence of a notation in the transcript as to her presence, was without merit, and, without more, was insufficient to meet defendant's burden of rebutting the presumption of regularity applicable to such proceedings.

People v Buonincontri, 18 AD3d 569, affirmed.

HEADNOTE

Crimes — Right to be Present at Trial — Presumption of Regularity

Where defendant was informed on the record that she had the right to be present during questioning of a prospective juror concerning the ability to be fair and impartial, the Appellate Division properly determined that inasmuch as her claim was supported only by the absence of a notation in the transcript as to her presence, defendant failed to present an adequate record to overcome the presumption of regularity which attaches to such proceedings.

APPEARANCES OF COUNSEL

Labe M. Richman, New York City, for appellant.

Michael E. Bongiorno, District Attorney, New City (*Ellen O'Hara Woods* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. The defendant was informed on the record that she had the right to be present during questioning of a prospective juror concerning the ability to be fair and impartial. The Appellate Division

properly determined that defendant failed to present an adequate record to overcome the presumption of regularity (see *People v Velasquez*, 1 NY3d 44, 48 [2003]).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

[843 NE2d 1120, 810 NYS2d 380]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES DEVONISH, Appellant.

Decided December 15, 2005

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 5, 2005. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Budd G. Goodman, J.), which had convicted defendant, upon a jury verdict, of burglary in the second degree, criminal mischief in the third degree, possession of burglar's tools (6 counts), and criminal possession of a controlled substance in the seventh degree.

People v Devonish, 17 AD3d 111, reversed.

HEADNOTE

Crimes — Burglary — Lesser Included Offense

In a burglary prosecution, the trial court erroneously refused defendant's request that the jury be charged with the lesser included offense of criminal trespass in the second degree (CPL 300.50). Defendant was found inside a locked church building with a bag containing the kinds of tools commonly used by burglars. The People's witness, the church's general contractor, testified that he had stored his tools in the church basement and that one of the tools found in defendant's possession was his for "sure," and the others might have been. Viewing the evidence in the light most favorable to defendant, the jury was entitled to infer that defendant did not bring the tools with him to the church, and thus that the evidence failed to show that he had criminal intent at the time of entry.

APPEARANCES OF COUNSEL

Legal Aid Society, New York City (*Jeffrey I. Richman* of counsel), for appellant.

Robert M. Morgenthau, District Attorney, New York City (Sandra E. Cavazos of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and a new trial ordered.

Defendant was convicted of burglary in the second degree after he was found inside a locked church building with a bag containing the kinds of tools commonly used by burglars. A witness for the People, a general contractor for the church, testified that he stored his tools in the church basement and that one of the tools found in defendant's possession was his for "sure," and the others might have been. Viewing the evidence in the light most favorable to defendant (*see People v Discala*, 45 NY2d 38, 42 [1978]), the jury was entitled to infer that defendant did not bring the tools with him to the church, and thus that the evidence failed to show that he had criminal intent at the time of entry (*see People v Scarborough*, 49 NY2d 364, 373 [1980]). It was error to refuse defendant's request that the jury be charged with the lesser included offense of criminal trespass in the second degree (CPL 300.50).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

[843 NE2d 1143, 810 NYS2d 403]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DWIGHT I. VOGEL, JR., Respondent.

Decided December 15, 2005

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered July 1, 2005. The Appellate Division (1) modified, on the law and as a matter of discretion in the interest of justice, a judgment of the Wyoming County Court (Mark H. Dadd, J.), which had convicted defendant, upon

his plea of guilty, of assault in the second degree, and (2) remitted the matter to Wyoming County Court for resentencing. The modification consisted of vacating the sentence of imprisonment.

People v Vogel, 20 AD3d 865, appeal dismissed.

HEADNOTE

Crimes — Appeal — Academic and Moot Questions

The People's appeal from an Appellate Division order which modified defendant's judgment of conviction by remitting the matter to County Court for resentencing was dismissed as moot. The People's claims regarding the order were rendered academic when County Court resentenced defendant to the same term imposed by its original judgment.

APPEARANCES OF COUNSEL

Gerald L. Stout, District Attorney, Warsaw (*Vincent A. Hemming* and *Donald G. O'Geen* of counsel), for appellant.

Anna M. Zephro Jost, Tonawanda, for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), appeal dismissed as moot. The People's claims regarding the Appellate Division's order vacating defendant's sentence were rendered academic when County Court resentenced defendant to the same term imposed by its original judgment.

Concur: Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH.

GORGONIO BALBUENA et al., Appellants, v IDR REALTY LLC et al., Defendants and Third-Party Plaintiffs. TAMAN MANAGEMENT CORP., Third-Party Defendant-Respondent. ATTORNEY GENERAL OF THE STATE OF NEW YORK, Intervenor-Appellant.

Submitted December 12, 2005; decided December 15, 2005

Reported below, 13 AD3d 285.

Motion by Washington Legal Foundation et al. for leave to file a brief amici curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

GORGONIO BALBUENA et al., Appellants, v IDR REALTY LLC et al., Defendants and Third-Party Plaintiffs. TAMAN MANAGEMENT CORP., Third-Party Defendant-Respondent. ATTORNEY GENERAL OF THE STATE OF NEW YORK, Intervenor-Appellant.

Submitted December 5, 2005; decided December 15, 2005

Reported below, 13 AD3d 285.

Motion by National Employment Law Project et al. for leave to file a brief amici curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

GORGONIO BALBUENA et al., Appellants, v IDR REALTY LLC et al., Defendants and Third-Party Plaintiffs. TAMAN MANAGEMENT CORP., Third-Party Defendant-Respondent. ATTORNEY GENERAL OF THE STATE OF NEW YORK, Intervenor-Appellant.

Submitted November 21, 2005; decided December 15, 2005

Reported below, 13 AD3d 285.

Motion by James Atleson et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

GORGONIO BALBUENA et al., Appellants, v IDR REALTY LLC et al., Defendants and Third-Party Plaintiffs. TAMAN MANAGEMENT CORP., Third-Party Defendant-Respondent. ATTORNEY GENERAL OF THE STATE OF NEW YORK, Intervenor-Appellant.

Submitted November 21, 2005; decided December 15, 2005

Reported below, 13 AD3d 285.

Motion by Associated Corset & Brassiere Manufacturers, Inc. et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

GORGONIO BALBUENA et al., Appellants, v IDR REALTY LLC et al., Defendants and Third-Party Plaintiffs. TAMAN MANAGEMENT CORP., Third-Party Defendant-Respondent. ATTORNEY GENERAL OF THE STATE OF NEW YORK, Intervenor-Appellant.

Submitted December 12, 2005; decided December 15, 2005

Reported below, 13 AD3d 285.

Motion by Albany/Capital District Chapter of the Labor Council for Latin American Advancement for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of RODNEY BELLONY, Appellant, v CHERYL CHAMBERS et al., Respondents.

Submitted December 12, 2005; decided December 15, 2005

Reported below, 21 AD3d 552.

Motion by New York State Association of Criminal Defense Lawyers et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed submission is accepted as filed.

In the Matter of COUNCIL OF THE CITY OF NEW YORK, Appellant, v MICHAEL R. BLOOMBERG, as Mayor of the City of New York, et al., Respondents.

Submitted December 12, 2005; decided December 15, 2005

Reported below, 16 AD3d 212.

Motion by American Civil Liberties Union et al. for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

In the Matter of COUNCIL OF THE CITY OF NEW YORK, Appellant, v MICHAEL R. BLOOMBERG, as Mayor of the City of New York, et al., Respondents.

Submitted December 12, 2005; decided December 15, 2005

Reported below, 16 AD3d 212.

Motion by the City and County of San Francisco, California et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of COUNCIL OF THE CITY OF NEW YORK, Appellant,
v MICHAEL R. BLOOMBERG, as Mayor of the City of New
York, et al., Respondents.

Submitted December 12, 2005; decided December 15, 2005

Reported below, 16 AD3d 212.

Motion by Brennan Center for Justice at New York University School of Law for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

In the Matter of COUNCIL OF THE CITY OF NEW YORK, Appellant,
v MICHAEL R. BLOOMBERG, as Mayor of the City of New
York, et al., Respondents.

Submitted December 12, 2005; decided December 15, 2005

Reported below, 16 AD3d 212.

Motion by Lambda Legal Defense and Education Fund, Inc. et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

CWM CHEMICAL SERVICES, L.L.C., Appellant, v ARTHUR J. ROTH,
as Commissioner of New York State Department of Taxa-
tion and Finance, et al., Respondents.

Submitted November 28, 2005; decided December 15, 2005

Reported below, 15 AD3d 77.

Motion by General Motors Corporation for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

ESTATE OF BRENDAN BOYLE et al., Appellants, v JAMES SMITH et
al., Defendants, and OTTO GARCIA et al., Respondents.

Submitted December 5, 2005; decided December 15, 2005

Reported below, 15 AD3d 338.

Motion by American Tort Reform Association for leave to file

a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRONE ATKINSON, Appellant.

Submitted November 28, 2005; decided December 15, 2005

Reported below, 21 AD3d 145.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ELIJAH LITTLE, Appellant.

Submitted December 12, 2005; decided December 15, 2005

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 dismissed upon the ground that no application for leave to appeal pursuant to CPL 460.20 will lie from an order of a single Justice of the Appellate Division denying leave to appeal to that court pursuant to CPL 460.15.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WINSTON NICHOLSON, Appellant.

Submitted December 12, 2005; decided December 15, 2005

Reported below, 15 AD3d 237.

Motion by Criminal Appeals Bureau of Legal Aid Society of New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EDWIN SANTANA, Appellant.

Submitted December 12, 2005; decided December 15, 2005

Reported below, 8 Misc 3d 137(A).

Motion for assignment of counsel granted and Steven Banks, Esq., Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

[843 NE2d 748, 810 NYS2d 121]

MICHAEL J. SOLAZZO, JR., et al., Appellants, v New York City
TRANSIT AUTHORITY et al., Respondents.

Decided December 20, 2005

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered September 1, 2005. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County (Robert D. Lippman, J.), which had granted a motion by defendants Transit Authority and Metropolitan Transportation Authority for summary judgment dismissing the complaint.

Plaintiff commenced this action to recover damages for injuries sustained when he slipped and fell on an allegedly wet, slippery subway station floor at the bottom of a staircase during an ongoing winter storm.

Solazzo v New York City Tr. Auth., 21 AD3d 735, affirmed.

HEADNOTE

Negligence — Snow and Ice — Notice of Icy Condition on Subway Steps

Defendants Transit Authority and Transportation Authority were entitled to summary judgment dismissing plaintiff's complaint in an action to recover for injuries sustained when plaintiff fell on an allegedly wet and slippery subway station floor at the bottom of a staircase, where it had been snowing, sleeting and raining on and off all day and the steps down into the subway were exposed to those weather conditions. A property owner will not be held liable in negligence for injuries sustained as the result of an icy condition occurring during an ongoing storm or for a reasonable time thereafter. Defendants' general awareness of the fact that the stairs and platforms become wet during inclement weather was insufficient to establish constructive notice of the specific condition causing plaintiff's injury.

APPEARANCES OF COUNSEL

Pollack, Pollack, Isaac & De Cicco, New York City (Brian J. Isaac of counsel), for appellants.

New York City Transit Authority, Law Department, Brooklyn (Lawrence A. Silver and Wallace D. Gossett of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

A property owner will not be held liable in negligence for a plaintiff's injuries sustained as the result of an icy condition occurring during an ongoing storm or for a reasonable time thereafter (see *Valentine v City of New York*, 86 AD2d 381, 383 [1st Dept 1982], *aff'd* 57 NY2d 932 [1982]). Here, it had been snowing, sleeting and raining on and off all day and the steps down into the subway were exposed to those weather conditions. Thus, summary judgment was properly granted in defendants' favor.

Plaintiffs argue that the ongoing storm doctrine should not apply because his injury was caused by a recurring hazardous condition of which defendant Transit Authority was aware. A general awareness that the stairs and platforms become wet during inclement weather was insufficient to establish constructive notice of the specific condition causing plaintiff's injury (see *Piacquadio v Recine Realty Corp.*, 84 NY2d 967, 969 [1994]).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

[843 NE2d 1148, 810 NYS2d 408]

In the Matter of GARY WALDREN, Respondent, v TOWN OF ISLIP, Appellant.

Decided December 20, 2005

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 9, 2005, in a proceeding pursuant to CPLR article 78 to review a determination of respondent Town, which had adopted the findings and recommendation of a hearing officer, made after a hearing, finding the petitioner guilty of misconduct, and terminated his employment. The Appellate Division (1) granted the petition to the

extent of annulling so much of respondent's determination as imposed a penalty, (2) remitted the matter to respondent to impose an appropriate penalty less severe than termination, (3) otherwise denied the petition, (4) otherwise dismissed the proceeding, and (5) otherwise confirmed the determination.

Petitioner Director of Public Safety for respondent Town was charged with accessing inappropriate material on an office computer. The hearing officer upheld the charges based on evidence that he accessed pornography on the Internet through his office computer on several dates over a 17-month period and imposed a penalty of termination.

The Appellate Division majority concluded that the penalty of termination was so disproportionate to the offense as to be shocking to one's sense of fairness.

Matter of Waldren v Town of Islip, 18 AD3d 566, reversed.

HEADNOTE

Civil Service — Disciplinary Punishment — Termination of Employment

An administrative penalty must be upheld unless it is so disproportionate to the offense as to be shocking to one's sense of fairness, thus constituting an abuse of discretion as a matter of law. Under the circumstances of this case, wherein petitioner Director of Public Safety for respondent Town inappropriately accessed pornography on the Internet through his office computer on several dates over a 17-month period, it cannot be concluded that the penalty of termination shocks the judicial conscience.

APPEARANCES OF COUNSEL

Bond, Schoeneck & King, PLLC, Garden City (*Ernest R. Stolz* of counsel), for appellant.

Rosenthal Curry & Kranz, LLP, East Meadow (*Allen M. Kranz* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, to the extent that it annulled so much of the Town's determination as imposed a penalty and remitted for imposition of a less severe penalty, and the petition dismissed.

An administrative penalty must be upheld unless it "is so disproportionate to the offense as to be shocking to one's sense of fairness," thus constituting an abuse of discretion as a matter of law (*Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester*

County, 34 NY2d 222, 237 [1974]). Under the circumstances of this case, it cannot be concluded that the penalty of termination imposed by the Commissioner shocks the judicial conscience. Petitioner's remaining contentions lack merit.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, reversed, with costs, and petition dismissed, in a memorandum.

[843 NE2d 1136, 810 NYS2d 396]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRONE HICKS, Appellant.

Argued November 17, 2005; decided December 20, 2005

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 12, 2004. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Lawrence Bernstein, J.), which had convicted defendant, upon a jury verdict, of attempted rape in the first degree and attempted sodomy in the first degree.

People v Hicks, 11 AD3d 261, affirmed.

HEADNOTES

Crimes — Jurors — Discharge of Juror

1. In a sexual assault criminal trial, the trial court properly denied defendant's request for a mistrial on the ground that a juror, who allegedly had claimed during deliberations that she had been raped, was grossly unqualified. Colloquy between the court and the juror failed to convince the court that the juror was not truthful. The juror unequivocally declared that she had never been raped and stated that she could render an impartial verdict. Defendant's argument that the trial court failed to conduct a probing and tactful inquiry of the juror was unpreserved. Defendant neither informed the court that its questioning was insufficient or objectionable, nor suggested additional avenues of inquiry or requested that other jurors be questioned.

Crimes — Verdict — Newly Discovered Evidence

2. The trial court properly denied defendant's motion to set aside the verdict on the ground of newly discovered evidence. The parole officer's testimony offered in conjunction with the motion was equivocal, unclear and lacking in indicia of certainty and did not give rise to a "probability" of a verdict more

favorable to defendant (CPL 330.30 [3]) but merely tended to impeach the victim's trial testimony. Thus, it was not the sort of newly discovered evidence that would entitle a defendant to a new trial.

APPEARANCES OF COUNSEL

Kuby & Perez LLP, New York City (*Ronald L. Kuby* of counsel), for appellant.

Robert T. Johnson, District Attorney, Bronx (*Jacob Kaplan*, *Joseph N. Ferdenzi* and *Stanley R. Kaplan* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant was charged with rape in the first degree and related crimes stemming from a sexual assault perpetrated against a female victim. During deliberations, the trial judge received a note from the jury foreperson asking to speak to the judge. When questioned in court, the foreperson explained that the jury had a concern that one of its members "should be excused from the jury for the simple fact that she said, on an occasion she was forced—forcibly raped by her boyfriend or [fiancé] at the time." Supreme Court queried the juror who allegedly claimed to have been raped, and in response to the prosecutor's request for more specific inquiry, the court recalled the juror for further questioning. During that colloquy, the following exchange occurred:

"THE COURT: You were not the victim of a rape?

"JUROR TWELVE: Not with him.

"THE COURT: With anybody, were you ever the victim of a rape?

"JUROR TWELVE: No.

"THE COURT: So when I asked you as a juror were you ever the victim of a crime, you answered no, and that is the truth?

"JUROR TWELVE: Right.

"THE COURT: Anything else from anybody?

"[PROSECUTOR]: No, your Honor.

“[DEFENSE]: No.”

The trial judge found that the juror was not grossly unqualified to serve and later declined to grant defendant’s request for a mistrial. Upon further deliberation, the jury convicted defendant of attempted rape in the first degree and attempted sodomy in the first degree. The court denied defendant’s subsequent motion to set aside the verdict and sentenced defendant as a second felony offender to an aggregate term of eight years’ imprisonment. The Appellate Division affirmed and a Judge of this Court granted leave to appeal.

[1] Supreme Court properly denied defendant’s mistrial motion. The juror unequivocally declared that she had never been raped and stated that she could render an impartial verdict. Defendant argued that the juror could not be “accepted at her word” and therefore had provided misleading responses during jury selection that disqualified her for service. The colloquy, however, failed to convince the court that the juror was not truthful and, as such, we cannot say that the court erred in concluding that the juror was not grossly unqualified to serve. To the extent defendant now claims that the juror should have been dismissed for engaging in “substantial misconduct” (*see* CPL 270.35 [1]), this contention is not properly before us since it was not raised at trial.

Furthermore, we cannot address defendant’s argument that Supreme Court failed to conduct a probing and tactful inquiry of the juror as required by *People v Buford* (69 NY2d 290 [1987]). Defendant neither informed the court that its questioning was insufficient or objectionable, nor suggested additional avenues of inquiry or requested that other jurors be questioned. In the absence of a protest to the scope or intensity of the court’s inquiry, no question of law was preserved for our review (*see* CPL 470.05 [2]; *People v Kelly*, 5 NY3d 116, 120 n 2 [2005]; *People v Torres*, 80 NY2d 944, 945 [1992]).

[2] The record also supports Supreme Court’s conclusion that the testimony offered in conjunction with defendant’s motion to set aside the verdict was “unclear, equivocal and lacking in indicia of certainty.” Because the testimony of the parole officer did not give rise to a “probability” of a verdict more favorable to defendant (CPL 330.30 [3]) and merely tended to impeach the victim’s trial testimony, it was “not the sort of ‘newly discovered evidence’ that would entitle a defendant to a new trial” (*People v Jackson*, 78 NY2d 638, 645 [1991]; *see People v Salemi*, 309 NY 208, 216 [1955]).

Defendant's remaining contention lacks merit.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

Order affirmed in a memorandum.

CHARLES ACKERMAN, Plaintiff, v MONIQUE GEBBIA-ACKERMAN,
Respondent. LESLIE TENZER, Nonparty Appellant.

Submitted October 17, 2005; decided December 20, 2005

Reported below, 19 AD3d 519.

Motion for leave to appeal from the judgment entered upon the Appellate Division order dismissed upon the ground that the judgment is not the final appealable paper from which leave to appeal may be sought (*see* CPLR 5611).

ANONYMOUS, Respondent, v ANONYMOUS, Appellant.

Submitted November 7, 2005; decided December 20, 2005

Reported below, 20 AD3d 333.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that defendant's appeal from the Appellate Division order affirming the denial of interim visitation is moot.

In the Matter of ANONYMOUS, for Admission to the Bar of the
State of New York, Appellant.

Submitted September 26, 2005; decided December 20, 2005

On the Court's own motion, appeal, insofar as taken from so much of the Appellate Division order as denied the application for admission to the bar, dismissed upon the ground that no substantial constitutional question is directly involved; appeal, insofar as taken from the remainder of the Appellate Division order, dismissed upon the ground that it does not finally determine the proceeding within the meaning of the Constitution. Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as denied the application for admission to the bar, denied; motion, insofar as it seeks leave to appeal from the remainder of the Appellate Division order,

dismissed upon the ground that it does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief etc. dismissed as academic.

Chief Judge KAYE taking no part.

In the Matter of ANONYMOUS, for Admission to the Bar of the State of New York, Appellant.

Submitted November 28, 2005; decided December 20, 2005

Motion for a stay etc. dismissed as academic.

Chief Judge KAYE taking no part.

APPALACHIAN INSURANCE COMPANY, Respondent, v GENERAL ELECTRIC COMPANY, Appellant, and RIUNIONE ADRIATICA DISICURTA, Also Known as ADRIATRIC INSURANCE COMPANY, et al., Respondents, et al., Defendants. (And a Third-Party Action.)

Submitted August 1, 2005; decided December 20, 2005

Reported below, 19 AD3d 198.

Motion for leave to appeal, insofar as it seeks leave to appeal as against Birmingham Fire Insurance Company of Pennsylvania, China America Insurance Company, Fremont Industrial Indemnity Company, Granite State Insurance Company, Insurance Company of the State of Pennsylvania, North River Insurance Company, Rampart Insurance Company, Riunione Adriatica DiSicurta and Starnet Insurance Company, granted; motion for leave to appeal otherwise dismissed upon the ground that as to the other parties, the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge READ taking no part.

In the Matter of ALFREDO CARTAGENA, Appellant, v NEW YORK STATE BOARD OF PAROLE, Respondent.

Submitted September 12, 2005; decided December 20, 2005

Reported below, 20 AD3d 751.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot. Motion for poor person relief dismissed as academic.

CHELSEA ASSOCIATES, LLC, et al., Respondents, v LAQUILA-PINNACLE, Defendant, and GERLING AMERICA INSURANCE COMPANY, Appellant.

Submitted October 24, 2005; decided December 20, 2005

Reported below, 21 AD3d 739.

Motion for leave to appeal denied upon the ground that an appeal lies as of right (*see* CPLR 5601 [a]).

In the Matter of WOODROW FLEMMING, Appellant, v ROBERT MORGENTHAU et al., Respondents.

Submitted August 29, 2005; decided December 20, 2005

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602).

ILIA JOSILEVICH, Appellant, v JAMES L. FORDE, Esq., et al., Respondents, et al., Defendant.

Submitted October 31, 2005; decided December 20, 2005

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the nonfinal order of the Appellate Division entered in this action which is treated as if commenced in Civil Court (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]; *see also* CPLR 326 [b]).

MERRELL-BENCO AGENCY, LLC, et al., Appellants, v HSBC BANK USA et al., Defendants, and WOLF KRAUS et al., Respondents. (And Two Other Related Actions.)

Submitted October 24, 2005; decided December 20, 2005

Reported below, 20 AD3d 605.

Motion, insofar as MBIA, LLC seeks leave to appeal, dismissed

upon the ground that MBIA, LLC is not a party aggrieved (*see* CPLR 5511); motion for leave to appeal otherwise denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BAR-
TOLOME BRITO, Appellant.

Submitted October 24, 2005; decided December 20, 2005

Reported below, 11 AD3d 933.

Motion to vacate this Court's September 30, 2005 dismissal order denied [*see* 5 NY3d 825].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ELLIS
EILAND, Appellant.

Submitted December 12, 2005; decided December 20, 2005

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no civil appeal lies from the order of Supreme Court entered in this criminal proceeding (*see* NY Const, art VI, 3 [b]; CPLR 5601; CPL 450.90).

BARBARA PURPURA, Respondent, v NICHOLAS E. PURPURA, Appel-
lant.

Submitted October 11, 2005; decided December 20, 2005

Reported below, 21 AD3d 542.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a preference dismissed as academic. Motion for poor person relief dismissed as academic.

BARBARA PURPURA, Respondent, v NICHOLAS E. PURPURA, Appel-
lant.

Submitted November 28, 2005; decided December 20, 2005

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a

preference dismissed as academic. Motion for poor person relief dismissed as academic.

[843 NE2d 1138, 810 NYS2d 399]

In the Matter of NIAGARA MOHAWK POWER CORPORATION, Appellant, v TOWN OF WATERTOWN et al., Respondents.

In the Matter of NIAGARA MOHAWK POWER CORPORATION, Appellant, v TOWN OF BETHLEHEM et al., Respondents.

In the Matter of NIAGARA MOHAWK POWER CORPORATION, Appellant, v TOWN OF TONAWANDA ASSESSOR et al., Respondents.

Argued November 15, 2005; decided December 22, 2005

SUMMARY

APPEAL, in the first above-entitled matter, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered November 19, 2004. The Appellate Division affirmed a judgment (denominated order) of the Supreme Court, Jefferson County (Hugh A. Gilbert, J.), entered in a proceeding pursuant to CPLR article 78, which had granted respondents' motion to dismiss the petition.

APPEAL, in the second above-entitled matter, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered March 17, 2005. The Appellate Division affirmed a judgment of the Supreme Court, Albany County (Louis C. Benza, J.), entered in a combined proceeding pursuant to RPTL article 7 and/or CPLR article 78 and action for declaratory judgment, which had, among other things, granted respondents' motion for summary judgment and dismissed the petition/complaint.

APPEAL, in the third above-entitled matter, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered April 29, 2005. The Appellate Division affirmed a judgment (denominated order) of the Supreme Court, Erie County (Joseph R. Glowonia, J.), entered in a proceeding pursuant to CPLR article 78, which had granted respondent's motion to dismiss the petition and amended petition and denied respondents' cross motion.

Matter of Niagara Mohawk Power Corp. v Town of Watertown, 12 AD3d 1188, reversed.

Matter of Niagara Mohawk Power Corp. v Town of Bethlehem, 16 AD3d 888, affirmed.

Matter of Niagara Mohawk Power Corp. v Town of Tonawanda Assessor, 17 AD3d 1090, affirmed.

HEADNOTES

Limitation of Actions — 30-Day Statute of Limitations — Power Corporation's Challenge to Municipal Ad Valorem Levy

1. Petitioner power corporation's proceedings challenging special ad valorem levies imposed by respondent towns on its transmission and distribution facilities to fund water and garbage districts were not time-barred by Town Law § 195 (2), which specified that any interested person aggrieved by a town's final determination or order establishing or extending an improvement district must seek judicial review within 30 days. The statute does not bar a plenary action attacking a town's authority or jurisdiction to impose a special ad valorem levy on real property for a special district, and that was what petitioner was contesting, even though its challenge was couched in CPLR article 78 terms.

Taxation — Ad Valorem Tax — Power Corporation's Property — Water

2. Respondent Town appropriately imposed a special ad valorem levy on petitioner power corporation's transmission and distribution facilities to fund a water district. Special ad valorem levies are limited to benefited properties. Real property is benefited if it is capable of receiving the municipal service at issue, based on innate features and legally permissible uses. Special ad valorem levies are unauthorized where the inherent characteristics of the subject properties preclude them from receiving the particular municipal services at issue. Petitioner's transmission and distribution facilities benefited from the Town's water district, which maintained a system of mains, pipes and hydrants available for firefighting purposes. In the past, the Town had responded to calls at petitioner's facilities caused by downed wires or arcing related to power surges in inclement weather.

Taxation — Ad Valorem Tax — Power Corporation's Property — Garbage Collection

3. Respondent Town appropriately imposed a special ad valorem levy on petitioner power corporation's transmission and distribution facilities to fund a garbage district. Special ad valorem levies are limited to benefited properties. Real property is benefited if it is capable of receiving the municipal service at issue, based on innate features and legally permissible uses. Special ad valorem levies are unauthorized where the inherent characteristics of the subject properties preclude them from receiving the particular municipal services at issue. Petitioner's vacant or undeveloped lands improved by electric and gas transmission fixtures and appurtenances in the town benefited from the Town's garbage district. There was a sufficient theoretical potential of the properties to be developed in a manner that would result in the generation of garbage which these properties already produced in the form of landscaping debris.

Taxation — Ad Valorem Tax — Power Corporation's Property — Sewer District

4. In a proceeding challenging an ad valorem levy imposed by respondent Town upon petitioner power corporation's transmission and distribution facil-

ities to fund a sewer district, an Appellate Division order which had affirmed a judgment granting respondents' motion to dismiss the proceeding was reversed. The record was inadequate to determine whether any of the properties benefited from the sewer district. Questions of fact existed as to whether petitioner owned the land on or under which the transmission and distribution facilities were situated, and as to whether, even if petitioner did not own the land, the sewer district encompassed storm sewers that actually or might potentially safeguard petitioner's transmission and distribution facilities from flooding.

APPEARANCES OF COUNSEL

Hiscock & Barclay, LLP, Albany (*Mark D. Lansing* of counsel), for appellant in the first and second above-entitled proceedings.

Hiscock & Barclay, LLP, Buffalo (*Mark R. McNamara* and *Mark D. Lansing* of counsel), for appellant in the third above-entitled proceeding.

Menter, Rudin & Trivelpeice, P.C., Syracuse (*Julian B. Modesti* of counsel), for respondents in the first above-entitled proceeding.

Hacker & Murphy, LLP, Latham (*Patrick L. Seely, Jr.* of counsel), for respondents in the second above-entitled proceeding.

Brown & Kelly, LLP, Buffalo (*Lisa T. Sofferin* and *Karen Cook Serrotte* of counsel), for respondents in the third above-entitled proceeding.

Michael E. Kenneally, Jr., Albany, for Association of Towns of the State of New York, Albany, amicus curiae in the first above-entitled proceeding.

OPINION OF THE COURT

MEMORANDUM.

The orders in *Matter of Niagara Mohawk v Town of Bethlehem* and *Matter of Niagara Mohawk v Town of Tonawanda Assessor* should be affirmed, with costs; and the order in *Matter of Niagara Mohawk v Town of Watertown* should be reversed, with costs, and the matter remitted to Supreme Court for further proceedings in accordance with this memorandum.

Niagara Mohawk Power Corporation, an energy resources company, owns mass property such as poles, wires, insulators and pipelines for transporting and distributing electricity and natural gas to its residential and commercial customers. In these proceedings, Niagara Mohawk challenges the imposition

of special ad valorem levies* in 2003 on its transmission and distribution facilities by the Towns of Bethlehem, Tonawanda and Watertown to fund a water, garbage and sewer district respectively. Niagara Mohawk takes the position that its transmission and distribution facilities, whether or not situated on or under land that it owns, are not real property benefited by the improvements, and therefore are not properly subject to special ad valorem levies.

In both *Bethlehem* and *Watertown*, the trial courts and the Appellate Division concluded that Niagara Mohawk's challenges were time-barred by Town Law § 195 (2), and so never reached the merits. Section 195 (2) specifies that any interested person aggrieved by a town's final determination or order establishing or extending an improvement district must seek judicial review within 30 days thereafter, accompanied by an undertaking. In *Tonawanda*, however, the trial court reached the merits, concluding that Niagara Mohawk's real property was benefited by the Town's garbage district. The Appellate Division affirmed on this basis.

Each of these appeals calls upon us to apply our recent decision in *New York Tel. Co. v Supervisor of Town of Oyster Bay* (4 NY3d 387 [2005]), which we handed down after the Appellate Division's decisions in *Bethlehem* and *Watertown*, but before the Appellate Division's decision in *Tonawanda*. In *New York Tel. Co.*, we considered whether mass property owned by New York Telephone Company (NYTC) (specifically, telephone lines, wires, cables, poles, supports and enclosures for electrical conductors) constituted "benefited" property upon which the Town of Oyster Bay could impose a special ad valorem levy for garbage collection. We held that "for real property to be 'benefited,' it must be capable of receiving the service funded by the special ad valorem levy" (4 NY3d at 393). To determine whether property is "capable of receiving the municipal service" funded by the tax, "we look to the innate features and legally permissible uses of the property, not the particularities of its owners or occupants or the state of the property at a fixed point in time" (*id.* at 394). Thus, we concluded that NYTC's real property—consisting solely of equipment situated on or under public and private

* RPTL 102 (14) defines a "[s]pecial ad valorem levy" as "a charge imposed upon benefited real property in the same manner and at the same time as taxes for municipal purposes to defray the cost . . . of a special district improvement or service, but not including any charge imposed by or on behalf of a city or village."

land not owned by NYTC—was not and could never be benefited by the garbage district because “telephone poles can never produce or require municipal garbage collection” (*id.*).

[1] As an initial matter, Town Law § 195 (2) does not preclude Niagara Mohawk’s actions against the Towns of Bethlehem and Watertown. As we explained in *New York Tel. Co.*, section 195 (2) does not bar a plenary action attacking a town’s authority or jurisdiction to impose a special ad valorem levy on real property for a special district (*id.* at 395 n 7). This is what Niagara Mohawk has, in fact, contested here, although couched in CPLR article 78 terms.

Turning to the merits, as we concluded in *New York Tel. Co.*, real property is “benefited” only if it is “capable of receiving the municipal service” at issue, based on “innate features and legally permissible uses” (*id.* at 394). Thus, special ad valorem levies are unauthorized where the “inherent characteristics of the subject properties preclude them from receiving [the particular municipal] services” at issue (*id.* at 393).

[2] Here, Niagara Mohawk’s transmission and distribution facilities in the Town of Bethlehem benefit from the Town’s water district, which maintains a system of mains, pipes and hydrants available for purposes of firefighting. Indeed, the Town’s longtime fire chief attested that he had responded to calls involving gas leaks and, on numerous occasions, fires at Niagara Mohawk’s transmission and distribution facilities, caused by such events as downed wires or arcing related to power surges or inclement weather.

[3] Similarly, Niagara Mohawk’s “otherwise vacant or undeveloped lands improved by electric and gas transmission fixtures and appurtenances” in the Town of Tonawanda benefit from the Town’s garbage district (17 AD3d 1090, 1092 [4th Dept 2005]). As the Appellate Division pointed out, “there is a sufficient theoretical potential of the properties to be developed in a manner that will result in the generation of garbage,” which, in fact, these properties already produce in the form of landscaping debris (grass clippings, tree clippings and brush) (*id.*).

[4] With respect to Niagara Mohawk’s real property in the Town of Watertown, the record is inadequate for us to determine whether any of the properties at issue benefit from the Town’s sewer district within the meaning of *New York Tel. Co.* Specifically, there are questions of fact as to whether Niagara Mohawk owns the land on or under which the transmission and distribu-

tion facilities are situated, and as to whether, even if Niagara Mohawk does not own the land, the sewer district encompasses storm sewers that actually or might potentially safeguard Niagara Mohawk's transmission and distribution facilities from flooding.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

In *Matter of Niagara Mohawk Power Corp. v Town of Watertown*: Order reversed, with costs, and matter remitted to Supreme Court, Jefferson County, for further proceedings in accordance with the memorandum herein.

In *Matter of Niagara Mohawk Power Corp. v Town of Bethlehem*: Order affirmed, with costs, in a memorandum.

In *Matter of Niagara Mohawk Power Corp. v Town of Tonawanda Assessor*: On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

L&R EXPLORATION VENTURE et al., Respondents, v JACK J. GRYNBERG, Appellant, et al., Respondent.

Submitted November 14, 2005; decided December 22, 2005

Reported below, 22 AD3d 221.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

ANTHONY MALLOY, Appellant, v STATE OF NEW YORK, Respondent.

Submitted November 14, 2005; decided December 22, 2005

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

KELLEY POTTER, Appellant, v JEANNE C. BERLIN, as City Clerk
of City of Oswego, et al., Respondents.

Submitted November 14, 2005; decided December 22, 2005

Reported below, 21 AD3d 1310 (Appeal No. 2).

Motion for leave to appeal denied. Motion for a stay dismissed
as academic.

In the Matter of E. LISA TANG, an Attorney, Appellant. COMMIT-
TEE ON PROFESSIONAL STANDARDS, Respondent.

Submitted November 7, 2005; decided December 22, 2005

Reported below, 21 AD3d 1210.

On the Court's own motion, appeal dismissed, without costs,
upon the ground that no substantial constitutional question is
directly involved. Motion for leave to appeal denied.

APPEALS DISMISSED ON CONSTITUTIONAL GROUNDS

Decided December 22, 2005

People ex rel. Baskerville v West

App Div, 3d Dept,
Sept. 12, 2005

Bear, Stearns & Co., Inc. v Enviropower, LLC

1st Dept: 21 AD3d 855

Muka, Matter of, v O'Shea

App Div, 3d Dept,
July 1, 2005

**MOTIONS FOR EXTENSION OF TIME TO APPLY
FOR PERMISSION TO APPEAL PURSUANT TO CPL 460.20**

Decided December 15, 2005

People v Cosme

1st Dept: 21 AD3d 827

granted

People v Gomez

1st Dept: 21 AD3d 827

granted

People v Peterson

4th Dept: 19 AD3d 1015

granted

**MOTIONS FOR LEAVE TO APPEAL/APPEALS
DISMISSED ON FINALITY GROUNDS**

Decided December 20, 2005

Follum v Follum

App Div, 4th Dept,
Sept. 13, 2005

Sawtelle v Waddell & Reed, Inc.

1st Dept: 21 AD3d 820

MEMORANDA

751

Decided December 22, 2005

Kayser v Kayser	2d Dept: 18 AD3d 441
Ross v Nestle Prepared Foods Co., Inc.	4th Dept: 21 AD3d 1329
Sheahan v Maston	4th Dept: 19 AD3d 1186
York v St. Mary's R.C. Church at Manhasset	2d Dept: 22 AD3d 484

MOTIONS FOR REARGUMENT OR RECONSIDERATION

Decided December 15, 2005

Regan, Matter of, v New York State & Local Employees' Retirement Sys.	5 NY3d 783	denied
---	------------	--------

Decided December 20, 2005

Valentine, Matter of, v Goord	5 NY3d 816	denied
-------------------------------	------------	--------

Decided December 22, 2005

Green v New York City Dept. of Educ.	5 NY3d 711	denied
NYCTL 1997-1 Trust v Goonan	5 NY3d 824	denied
Regatos v North Fork Bank	5 NY3d 395	denied

APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF COURT OF APPEALS OR ON CONSENT

(December 1, 2005 through December 31, 2005)

Jenkins, Matter of, v Jenkins	3d Dept: 9 AD3d 633	12/23/05
Nova v State of New York	App Div, 1st Dept, Sept. 20, 2005	12/12/05
People v Oquendo	App Div, 2d Dept, Aug. 25, 2005	12/28/05
Tunne, Matter of (Commissioner of Labor)	3d Dept: 21 AD3d 1194	12/28/05

APPEALS WITHDRAWN AND DISCONTINUED

(December 1, 2005 through December 31, 2005)

River Seafoods, Inc. v JPMorgan Chase Bank	1st Dept: 19 AD3d 120	12/29/05
---	-----------------------	----------

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(December 1, 2005 through December 31, 2005)

People v Adams	App Div, 4th Dept, 10/5/05 (Erie)	dismissed 12/15/05 (G.B. Smith, J.)
People v Ahib	1st Dept: 25 AD3d 165 (Bronx)	denied 12/30/05 (Grafteo, J.)
People v Ahmr	2d Dept: 22 AD3d 593 (Queens)	denied 12/16/05 (G.B. Smith, J.)
People v Almarez	4th Dept: 21 AD3d 1438 (Seneca)	denied 12/6/05 (Kaye, Ch.J.)
People v Alston	4th Dept: 23 AD3d 1041 (Steuben)	denied 12/29/05 (Rosenblatt, J.)
People v Anthony	4th Dept: 23 AD3d 1033 (Erie)	denied 12/30/05 (Grafteo, J.)
People v Argentieri	1st Dept: 21 AD3d 743 (NY)	denied 12/16/05 (Read, J.)
People v Ariel	2d Dept: 22 AD3d 1038 (Queens)	denied 12/13/05 (Read, J.)
People v Bancroft	3d Dept: 23 AD3d 850 (St. Lawrence)	denied 12/30/05 (G.B. Smith, J.)
People v Barnes (Aurello)	2d Dept: 21 AD3d 420 (Queens)	denied 12/13/05 (Read, J.)
People v Barnes (Escalante)	2d Dept: 21 AD3d 420 (Queens)	denied 12/13/05 (Read, J.)
People v Beckford	4th Dept: 21 AD3d 1443 (Erie)	denied 12/30/05 (Grafteo, J.)
People v Bellini	2d Dept: 22 AD3d 504 (Queens)	denied 12/30/05 (G.B. Smith, J.)
People v Bethune	4th Dept: 21 AD3d 1316 (Monroe)	denied 12/1/05 (G.B. Smith, J.)
People v Beyer	3d Dept: 21 AD3d 592 (Montgomery)	denied 12/2/05 (R.S. Smith, J.)
People v Blackshear	2d Dept: 22 AD3d 862 (Suffolk)	denied 12/28/05 (G.B. Smith, J.)
People v Bradley	1st Dept: 22 AD3d 33 (NY)	granted 12/2/05 (Grafteo, J.)
People v Brown	App Term, 2d Dept: 9 Misc 3d 131(A) (Kings)	denied 12/27/05 (Ciparick, J.)
People v Burkett	4th Dept: 17 AD3d 1175 (Cayuga)	denied 12/16/05 (G.B. Smith, J.)
People v Bush	4th Dept: 23 AD3d 1066 (Chautauqua)	denied 12/30/05 (G.B. Smith, J.)
People v Camacho	1st Dept: 22 AD3d 367 (Bronx)	denied 12/30/05 (Grafteo, J.)
People v Carrington	1st Dept: 23 AD3d 177 (NY)	denied 12/30/05 (G.B. Smith, J.)
People v Casivant	County Ct, 9/29/05 (Columbia)	denied 12/29/05 (Rosenblatt, J.)

MEMORANDA

753

People v Chatman	1st Dept: 22 AD3d 255 (NY)	denied 12/27/05 (Grafteo, J.)
People v Chiclana	1st Dept: 21 AD3d 823 (NY)	denied 12/27/05 (Ciparick, J.)
People v Chowdhury	2d Dept: 22 AD3d 596 (Queens)	denied 12/5/05 (G.B. Smith, J.)
People v Cochran	2d Dept: 22 AD3d 677 (Orange)	denied 12/14/05 (Kaye, Ch.J.)
People v Coke	App Div, 4th Dept, 11/1/05 (Niagara)	dismissed 12/22/05 (Rosenblatt, J.)
People v Concepcion	4th Dept: 21 AD3d 1443 (Monroe)	denied 12/30/05 (G.B. Smith, J.)
People v Cox	4th Dept: 21 AD3d 1361 (Cayuga)	denied 12/9/05 (Kaye, Ch.J.)
People v Crespo	App Div, 1st Dept, 6/14/05 (Bronx)	denied 12/5/05 (Kaye, Ch.J.)
People v Cruz	2d Dept: 21 AD3d 967 (Queens)	denied 12/16/05 (Read, J.)
People v Davis	3d Dept: 15 AD3d 723 (Albany)	denied 12/16/05 (Read, J.)
People v Delacruz	1st Dept: 21 AD3d 1441 (NY)	denied 12/16/05 (G.B. Smith, J.)
People v Diaz	App Div, 1st Dept, 8/25/05 (Bronx)	dismissed 12/2/05 (R.S. Smith, J.)
People v Errington	2d Dept: 21 AD3d 1443 (Kings)	denied 12/13/05 (Read, J.)
People v Estrada	2d Dept: 21 AD3d 968 (Queens)	denied 12/27/05 (Grafteo, J.)
People v Felix	2d Dept: 20 AD3d 433 (Kings)	denied 12/12/05 (Grafteo, J.)
People v Ferguson	4th Dept: 21 AD3d 1415 (Monroe)	denied 12/28/05 (Grafteo, J.)
People v Figueroa	1st Dept: 21 AD3d 337 (Bronx)	denied 12/8/05 (R.S. Smith, J.)
People v Fordham	2d Dept: 21 AD3d 1120 (Kings)	denied 12/6/05 (Kaye, Ch.J.)
People v Franco V.	1st Dept: 22 AD3d 1038 (NY)	denied 12/19/05 (Grafteo, J.)
People v Frierson	3d Dept: 21 AD3d 1211 (Rensselaer)	denied 12/5/05 (Kaye, Ch.J.)
People v Garcia (Francisco)	2d Dept: 21 AD3d 968 (Queens)	denied 12/27/05 (Grafteo, J.)
People v Garcia (Johann)	1st Dept: 21 AD3d 813 (Bronx)	denied 12/5/05 (G.B. Smith, J.)
People v Garvin	1st Dept: 23 AD3d 155 (NY)	denied 12/19/05 (Kaye, Ch.J.)
People v Gibbs	County Ct, 9/30/05 (Erie)	denied 12/27/05 (Grafteo, J.)

People v Glanda	3d Dept: 18 AD3d 956 (Essex)	denied 12/16/05 (Read, J.)
People v Grayton	2d Dept: 22 AD3d 598 (Kings)	denied 12/29/05 (Rosenblatt, J.)
People v Guity	1st Dept: 22 AD3d 331 (Bronx)	denied 12/27/05 (Ciparick, J.)
People v Hall	1st Dept: 23 AD3d 151 (NY)	denied 12/20/05 (G.B. Smith, J.)
People v Hardy	2d Dept: 22 AD3d 679 (Queens)	denied 12/6/05 (Kaye, Ch.J.)
People v Harris	2d Dept: 21 AD3d 907 (Westchester)	denied 12/28/05 (Grafteo, J.)
People v Harrison	1st Dept: 22 AD3d 236 (NY)	denied 12/27/05 (Grafteo, J.)
People v Hiett	1st Dept: 22 AD3d 296 (NY)	denied 12/5/05 (Kaye, Ch.J.)
People v Highsmith	2d Dept: 21 AD3d 1037 (Orange)	denied 12/8/05 (Kaye, Ch.J.)
People v Hughes	1st Dept: 15 AD3d 1015 (Bronx)	denied 12/13/05 (Read, J.)
People v Islam	2d Dept: 22 AD3d 599 (Queens)	denied 12/16/05 (G.B. Smith, J.)
People v Jackson	App Div, 3d Dept, 8/17/05 (Albany)	denied 12/2/05 (R.S. Smith, J.)
People v Jamerson	2d Dept: 21 AD3d 428 (Kings)	denied 12/2/05 (R.S. Smith, J.)
People v Jarvis	2d Dept: 22 AD3d 865 (Kings)	denied 12/22/05 (Rosenblatt, J.)
People v Johnson (Darrell)	2d Dept: 22 AD3d 600 (Westchester)	denied 12/30/05 (G.B. Smith, J.)
People v Johnson (Derrick)	App Div, 2d Dept, 11/3/05 (Queens)	dismissed 12/19/05 (G.B. Smith, J.)
People v Johnson (Henry)	App Div, 1st Dept, 9/22/05 (Bronx)	dismissed 12/5/05 (G.B. Smith, J.)
People v Johnson (James)	1st Dept: 22 AD3d 371 (NY)	denied 12/29/05 (Rosenblatt, J.)
People v Johnson (Kevin)	App Div, 1st Dept, 9/29/05 (NY)	dismissed 12/14/05 (Kaye, Ch.J.)
People v Johnson (Ronald)	1st Dept: 22 AD3d 381 (NY)	denied 12/19/05 (Kaye, Ch.J.)
People v Jones (Damien)	1st Dept: 22 AD3d 1038 (NY)	denied 12/30/05 (G.B. Smith, J.)
People v Jones (Jerome)	2d Dept: 23 AD3d 399 (Suffolk)	denied 12/28/05 (G.B. Smith, J.)
People v Jones (Michael)	App Div, 2d Dept, 9/13/05 (Westchester)	dismissed 12/13/05 (Read, J.)
People v Jones (Samantha)	2d Dept: 21 AD3d 968 (Orange)	denied 12/16/05 (Read, J.)

MEMORANDA

755

People v Jones (Thomas)	2d Dept: 21 AD3d 429 (Rockland)	denied 12/2/05 (R.S. Smith, J.)
People v Jones (Walter)	1st Dept: 21 AD3d 860 (NY)	denied 12/5/05 (Kaye, Ch.J.)
People v Judy	2d Dept: 21 AD3d 969 (Orange)	denied 12/13/05 (Read, J.)
People v Khan	App Div, 2d Dept, 8/29/05 (Queens)	dismissed 12/5/05 (G.B. Smith, J.)
People v King	4th Dept: 21 AD3d 1319 (Monroe)	denied 12/30/05 (G.B. Smith, J.)
People v Kittles (Ponel)	3d Dept: 23 AD3d 775 (Chemung)	denied 12/30/05 (Kaye, Ch.J.)
People v Kittles (Ponel)	App Div, 3d Dept, 2/4/05 (Chemung)	dismissed 12/29/05 (Kaye, Ch.J.)
People v K.O.	3d Dept: 22 AD3d 873 (Schenectady)	denied 12/19/05 (Kaye, Ch.J.)
People v Koehl	2d Dept: 22 AD3d 601 (Richmond)	denied 12/30/05 (G.B. Smith, J.)
People v Kozikowski	4th Dept: 23 AD3d 990 (Onondaga)	denied 12/29/05 (Rosenblatt, J.)
People v Kusmierz	4th Dept: 21 AD3d 1404 (Erie)	denied 12/9/05 (Kaye, Ch.J.)
People v Lacey	County Ct, 8/23/05 (Clinton)	denied 12/2/05 (R.S. Smith, J.) (upon reconsideration)
People v Lampkin	4th Dept: 23 AD3d 1133 (Niagara)	denied 12/6/05 (Kaye, Ch.J.)
People v Lard	4th Dept: 23 AD3d 1033 (Erie)	denied 12/30/05 (Grafteo, J.)
People v Lascelle	4th Dept: 23 AD3d 1137 (Wyoming)	denied 12/30/05 (G.B. Smith, J.)
People v Lawson	2d Dept: 22 AD3d 602 (Queens)	denied 12/14/05 (Kaye, Ch.J.)
People v Leftenant	2d Dept: 22 AD3d 603 (Suffolk)	denied 12/27/05 (Ciparick, J.)
People v Leon	4th Dept: 23 AD3d 1110 (Monroe)	denied 12/30/05 (Grafteo, J.)
People v Lightfoot	2d Dept: 22 AD3d 865 (Queens)	denied 12/27/05 (Grafteo, J.)
People v Lloyd	1st Dept: 23 AD3d 296 (Bronx)	denied 12/28/05 (G.B. Smith, J.)
People v Logan	2d Dept: 22 AD3d 605 (Kings)	denied 12/30/05 (G.B. Smith, J.)
People v Lynch	2d Dept: 21 AD3d 912 (Queens)	denied 12/6/05 (R.S. Smith, J.)
People v M&H Used Auto Parts & Cars, Inc.	2d Dept: 22 AD3d 135 (Queens)	denied 12/12/05 (Grafteo, J.)

People v Marte	1st Dept: 22 AD3d 1038 (NY)	denied 12/30/05 (G.B. Smith, J.)
People v Martin	1st Dept: 19 AD3d 236 (NY)	denied 12/2/05 (R.S. Smith, J.)
People v Martinez (Francisco)	1st Dept: 22 AD3d 294 (NY)	denied 12/27/05 (Grafteo, J.)
People v Martinez (Jose)	1st Dept: 22 AD3d 318 (NY)	denied 12/19/05 (Kaye, Ch.J.)
People v Mattia	2d Dept: 22 AD3d 687 (Kings)	denied 12/29/05 (Rosenblatt, J.)
People v Maxwell	2d Dept: 22 AD3d 607 (Westchester)	denied 12/30/05 (G.B. Smith, J.)
People v McCoy (Michael)	4th Dept: 21 AD3d 1275 (Monroe)	denied 12/27/05 (Grafteo, J.) (Appeal No. 1)
People v McCoy (Michael)	4th Dept: 21 AD3d 1276 (Monroe)	denied 12/27/05 (Grafteo, J.) (Appeal No. 2)
People v McFarlan	1st Dept: 22 AD3d 409 (NY)	denied 12/23/05 (Rosenblatt, J.)
People v Michalski	4th Dept: 15 AD3d 918 (Oswego)	denied 12/5/05 (Kaye, Ch.J.) (upon reconsideration)
People v Mickens	App Div, 2d Dept, 10/24/05 (Suffolk)	dismissed 12/6/05 (Ciparick, J.)
People v Milkowski	4th Dept: 21 AD3d 1404 (Erie)	denied 12/09/05 (Kaye, Ch.J.)
People v Miller (Donahue)	3d Dept: 17 AD3d 931 (Ulster)	denied 12/29/05 (Rosenblatt, J.) (upon reconsideration)
People v Miller (Donahue)	App Div, 3d Dept, 8/23/05 (Ulster)	denied reconsideration 12/29/05 (Rosenblatt, J.)
People v Miller (Kurt)	2d Dept: 22 AD3d 768 (Queens)	denied 12/27/05 (Grafteo, J.)
People v Mitchell (Dwight)	2d Dept: 22 AD3d 769 (Orange)	denied 12/30/05 (Grafteo, J.)
People v Mitchell (Mark)	App Div, 4th Dept, 11/14/05 (Erie)	dismissed 12/22/05 (Rosenblatt, J.)
People v Montstream	4th Dept: 21 AD3d 1353 (Niagara)	denied 12/27/05 (Grafteo, J.)
People v Moore	App Div, 3d Dept, 11/16/05 (Essex)	dismissed 12/2/05 (Grafteo, J.)
People v Morton	2d Dept: 23 AD3d 411 (Queens)	denied 12/29/05 (Rosenblatt, J.)
People v Mullings	3d Dept: 23 AD3d 756 (Albany)	denied 12/29/05 (Rosenblatt, J.)

MEMORANDA

757

People v Navedo	1st Dept: 22 AD3d 383 (NY)	denied 12/16/05 (G.B. Smith, J.)
People v Nelson (Michael)	1st Dept: 21 AD3d 861 (NY)	granted 12/19/05 (Kaye, Ch.J.)
People v Nelson (Steve)	2d Dept: 22 AD3d 769 (Kings)	denied 12/16/05 (G.B. Smith, J.)
People v Nevado	1st Dept: 22 AD3d 383 (NY)	denied 12/16/05 (G.B. Smith, J.)
People v Newton	4th Dept: 21 AD3d 1443 (Monroe)	denied 12/5/05 (Kaye, Ch.J.)
People v Nichols	4th Dept: 21 AD3d 1273 (Monroe)	denied 12/28/05 (Grafteo, J.)
People v Nolasco	2d Dept: 22 AD3d 1038 (Suffolk)	denied 12/6/05 (Grafteo, J.)
People v Northrup	4th Dept: 23 AD3d 1102 (Cattaraugus)	denied 12/29/05 (Rosenblatt, J.)
People v O'Connor	4th Dept: 21 AD3d 1364 (Orleans)	denied 12/29/05 (Rosenblatt, J.)
People v Ortiz (David)	1st Dept: 23 AD3d 266 (NY)	denied 12/29/05 (Rosenblatt, J.)
People v Ortiz (Jose)	2d Dept: 23 AD3d 499 (Kings)	denied 12/23/05 (Rosenblatt, J.)
People v Ortiz (Miguel)	1st Dept: 21 AD3d 1441 (NY)	denied 12/30/05 (G.B. Smith, J.)
People v Pagan	App Div, 3d Dept, 8/23/05 (Franklin)	denied 12/6/05 (Kaye, Ch.J.)
People v Paredes	1st Dept: 22 AD3d 297 (NY)	denied 12/29/05 (Rosenblatt, J.)
People v Patterson (Catherine)	1st Dept: 21 AD3d 838 (NY)	denied 12/27/05 (Grafteo, J.)
People v Patterson (Curtis)	1st Dept: 22 AD3d 228 (Bronx)	denied 12/14/05 (Kaye, Ch.J.)
People v Paul	1st Dept: 25 AD3d 165 (Bronx)	denied 12/30/05 (Grafteo, J.)
People v Peck	App Div, 3d Dept, 10/20/05 (Saratoga)	dismissed 12/12/05 (Ciparick, J.)
People v Plato	2d Dept: 22 AD3d 507 (Kings)	denied 12/5/05 (Kaye, Ch.J.)
People v Pulliam	App Div, 3d Dept, 8/17/05 (Albany)	denied 12/19/05 (Kaye, Ch.J.) (upon reconsideration)
People v Quail	1st Dept: 22 AD3d 292 (Bronx)	denied 12/27/05 (Grafteo, J.)
People v Randle	4th Dept: 21 AD3d 1341 (Monroe)	denied 12/27/05 (Ciparick, J.) (Appeal No. 2)
People v Reyes (Cesar)	1st Dept: 22 AD3d 1038 (Bronx)	denied 12/30/05 (G.B. Smith, J.)

People v Reyes (Victor)	App Term, 2d Dept: 10 Misc 3d 143(A) (Queens)	denied 12/30/05 (G.B. Smith, J.)
People v Riley	App Div, 1st Dept, 11/15/05 (Bronx)	dismissed 12/28/05 (Grafteo, J.)
People v Rivera	1st Dept: 22 AD3d 1038 (Bronx)	denied 12/19/05 (Kaye, Ch.J.)
People v Robetoy	3d Dept: 21 AD3d 1220 (Albany)	denied 12/20/05 (G.B. Smith, J.)
People v Robinson (Adrian)	2d Dept: 22 AD3d 610 (Kings)	denied 12/12/05 (Grafteo, J.)
People v Robinson (Tyler)	1st Dept: 24 AD3d 124 (NY)	denied 12/19/05 (Kaye, Ch.J.)
People v Rodriguez (Carlos)	1st Dept: 22 AD3d 412 (NY)	denied 12/14/05 (Kaye, Ch.J.)
People v Rodriguez (Efrain)	App Div, 4th Dept, 11/2/05 (Erie)	dismissed 12/19/05 (G.B. Smith, J.)
People v Romero	1st Dept: 22 AD3d 287 (NY)	denied 12/29/05 (Rosenblatt, J.)
People v Rosa	1st Dept: 22 AD3d 1038 (NY)	denied 12/19/05 (Kaye, Ch.J.)
People v Rossi	App Div, 2d Dept, 10/19/05 (Kings)	dismissed 12/9/05 (Grafteo, J.)
People v Royster	App Div, 1st Dept, 11/3/05 (NY)	dismissed 12/14/05 (Kaye, Ch.J.)
People v Rutledge	2d Dept: 21 AD3d 1125 (Queens)	denied 12/30/05 (Grafteo, J.)
People v Sanders	2d Dept: 23 AD3d 679 (Kings)	denied 12/30/05 (G.B. Smith, J.)
People v Santos	2d Dept: 21 AD3d 911 (Kings)	denied 12/30/05 (Grafteo, J.)
People v Schmitt	4th Dept: 21 AD3d 1403 (Niagara)	denied 12/16/05 (Read, J.)
People v Schrader	1st Dept: 22 AD3d 259 (NY)	denied 12/5/05 (Kaye, Ch.J.)
People v Scott	3d Dept: 15 AD3d 775 (Schenectady)	denied 12/5/05 (Kaye, Ch.J.)
People v Seeley	1st Dept: 22 AD3d 225 (NY)	denied 12/29/05 (Rosenblatt, J.)
People v Sepulveda	1st Dept: 22 AD3d 407 (Bronx)	denied 12/5/05 (Kaye, Ch.J.)
People v Serrano	App Div, 1st Dept, 9/22/05 (NY)	denied 12/22/05 (Rosenblatt, J.)
People v Seymour	4th Dept: 21 AD3d 1292 (Onondaga)	denied 12/28/05 (Grafteo, J.)
People v Simmons	3d Dept: 20 AD3d 813 (Albany)	denied 12/2/05 (R.S. Smith, J.)
People v Small	2d Dept: 22 AD3d 509 (Kings)	denied 12/14/05 (Kaye, Ch.J.)

MEMORANDA

759

People v Smith (Anthony)	4th Dept: 20 AD3d 943 (Monroe)	denied 12/30/05 (Kaye, Ch.J.)
People v Smith (Anthony)	4th Dept: 21 AD3d 1443 (Monroe)	dismissed 12/30/05 (Kaye, Ch.J.)
People v Smith (Corey)	1st Dept: 23 AD3d 280 (NY)	granted 12/19/05 (Kaye, Ch.J.)
People v Sorrentino	4th Dept: 17 AD3d 1175 (Cayuga)	denied 12/3/05 (Grafteo, J.) (upon reconsideration)
People v Sosa	App Div, 1st Dept, 10/6/05 (Bronx)	denied 12/27/05 (Grafteo, J.)
People v Soto	2d Dept: 22 AD3d 511 (Westchester)	denied 12/6/05 (Rosenblatt, J.)
People v Stallworth	4th Dept: 21 AD3d 1412 (Erie)	denied 12/16/05 (Read, J.)
People v Stalter	2d Dept: 21 AD3d 968 (Orange)	denied 12/16/05 (Read, J.)
People v Stokes	App Div, 2d Dept, 8/25/05 (Kings)	dismissed 12/2/05 (Grafteo, J.)
People v Storms	App Div, 2d Dept, 10/20/05 (Kings)	dismissed 12/22/05 (Rosenblatt, J.)
People v Streeter	4th Dept: 23 AD3d 1113 (Wayne)	denied 12/28/05 (G.B. Smith, J.)
People v Sukdeo	2d Dept: 17 AD3d 384 (Kings)	denied 12/16/05 (Read, J.)
People v Summerville	2d Dept: 22 AD3d 692 (Kings)	denied 12/27/05 (Grafteo, J.)
People v Swail	4th Dept: 19 AD3d 1013 (Monroe)	denied 12/2/05 (R.S. Smith, J.)
People v Thomas (Darshaun)	2d Dept: 22 AD3d 1039 (Suffolk)	denied 12/9/05 (Rosenblatt, J.)
People v Thomas (Lamel)	3d Dept: 21 AD3d 643 (Schenectady)	denied 12/30/05 (Grafteo, J.)
People v Thomas (Marvin)	4th Dept: 23 AD3d 1156 (Onondaga)	denied 12/28/05 (G.B. Smith, J.) (Appeal No. 1)
People v Thomas (Marvin)	4th Dept: 23 AD3d 1156 (Onondaga)	denied 12/28/05 (G.B. Smith, J.) (Appeal No. 2)
People v Thompson	2d Dept: 21 AD3d 912 (Queens)	denied 12/6/05 (R.S. Smith, J.)
People v Tony	3d Dept: 23 AD3d 756 (Albany)	denied 12/29/05 (Rosenblatt, J.)
People v Torres	County Ct, 11/7/05 (Westchester)	dismissed 12/30/05 (Ciparick, J.)

People v Trinidad	4th Dept: 23 AD3d 1060 (Erie)	denied 12/28/05 (G.B. Smith, J.)
People v Tucker (Joseph)	1st Dept: 22 AD3d 353 (NY)	denied 12/29/05 (Rosenblatt, J.)
People v Tucker (Neil)	2d Dept: 21 AD3d 387 (Kings)	denied 12/5/05 (G.B. Smith, J.) (upon reconsideration)
People v Tyler	1st Dept: 17 AD3d 239 (NY)	denied 12/16/05 (G.B. Smith, J.) (upon reconsideration)
People v Urtado	1st Dept: 21 AD3d 854 (NY)	denied 12/16/05 (Read, J.)
People v Valles	1st Dept: 21 AD3d 855 (NY)	denied 12/27/05 (Ciparick, J.)
People v Velez	1st Dept: 21 AD3d 262 (NY)	denied 12/27/05 (Grafteo, J.)
People v Vidal	4th Dept: 21 AD3d 1339 (Monroe)	denied 12/30/05 (G.B. Smith, J.)
People v Vinson	2d Dept: 18 AD3d 784 (Westchester)	denied 12/23/05 (Rosenblatt, J.)
People v Webster	1st Dept: 23 AD3d 201 (NY)	denied 12/6/05 (Rosenblatt, J.)
People v Wellens	1st Dept: 23 AD3d 312 (NY)	granted 12/16/05 (Kaye, Ch.J.)
People v Whitson	4th Dept: 21 AD3d 1441 (Genesee)	denied 12/19/05 (Rosenblatt, J.)
People v Willette	App Div, 3d Dept, 8/31/05 (Clinton)	denied 12/2/05 (R.S. Smith, J.)
People v Williams (Alex)	2d Dept: 23 AD3d 589 (Queens)	denied 12/30/05 (G.B. Smith, J.)
People v Williams (David)	App Div, 2d Dept, 9/2/05 (Westchester)	dismissed 12/2/05 (R.S. Smith, J.)
People v Williams (DeAndre)	App Div, 2d Dept, 9/2/05 (Westchester)	dismissed 12/2/05 (R.S. Smith, J.)
People v Williams (Joyce)	County Ct, 9/23/05 (Monroe)	denied 12/1/05 (G.B. Smith, J.)
People v Williams (Kal)	App Div, 1st Dept, 8/18/05 (NY)	dismissed 12/2/05 (R.S. Smith, J.)
People v Williams (Ronnie)	App Div, 2d Dept, 10/26/05 (Suffolk)	dismissed 12/19/05 (G.B. Smith, J.)
People v Williams (Timothy)	1st Dept: 22 AD3d 256 (NY)	denied 12/28/05 (G.B. Smith, J.)
People v Williams (Willie)	1st Dept: 22 AD3d 218 (NY)	denied 12/30/05 (Grafteo, J.)

People v Williamson	3d Dept: 21 AD3d 575 (Madison)	denied 12/30/05 (G.B. Smith, J.)
People v Wilson	2d Dept: 23 AD3d 505 (Suffolk)	denied 12/30/05 (G.B. Smith, J.)
People v Woods	4th Dept: 21 AD3d 1314 (Ontario)	denied 12/16/05 (Read, J.)
People v Woodson	4th Dept: 21 AD3d 1441 (Monroe)	denied 12/6/05 (Kaye, Ch.J.)
People v Wright (Dean)	2d Dept: 21 AD3d 912 (Queens)	denied 12/6/05 (R.S. Smith, J.)
People v Wright (Omar)	3d Dept: 22 AD3d 873 (Schenectady)	denied 12/19/05 (Kaye, Ch.J.)
People v Wyche	1st Dept: 21 AD3d 281 (NY)	denied 12/16/05 (Read, J.)

[844 NE2d 742, 811 NYS2d 288]

200 GENESEE ST. CORP., Respondent, v CITY OF UTICA et al., Appellants, et al., Defendants.

Decided January 10, 2006

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered July 1, 2005. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, a judgment of the Supreme Court, Oneida County (Anthony F. Shaheen, J.), which, in a declaratory judgment action, insofar as appealed from, had granted a motion by defendants City of Utica and Utica Parking Authority for summary judgment dismissing the complaint and denied plaintiff's cross motion for summary judgment, (2) denied defendants' motion, reinstated the complaint and granted plaintiff's cross motion, and (3) declared that plaintiff was entitled under the parties' agreement to 235 covered parking spaces.

200 Genesee St. Corp. v City of Utica, 20 AD3d 889, reversed.

HEADNOTE

Contracts — Construction

In an action for a judgment declaring the parties' rights and obligations under a parking contract, the contract clearly and unambiguously provided that defendant City agreed to provide plaintiff with up to 235 unreserved and

unallocated parking spaces. The contract, negotiated between sophisticated business people negotiating at arm's length, was silent on the location of those spaces and the number of floors in the parking garage, and Supreme Court appropriately refrained from reading language into the contract that the parties agreed the City would provide plaintiff with 235 "covered" parking spaces.

APPEARANCES OF COUNSEL

Linda Sullivan Fatata, Corporation Counsel, Utica (William M. Borrill of counsel), for appellants.

Saunders, Kahler, Amoroso & Locke, L.L.P., Utica (Gregory J. Amoroso of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, defendants' motion for summary judgment granted, and judgment granted declaring that plaintiff is not entitled to 235 "covered" parking spaces under its 1979 contract with the City of Utica.

We agree with Supreme Court that the 1979 contract clearly and unambiguously provides that defendant agreed to provide plaintiff with up to 235 unreserved and unallocated parking spaces. The contract is silent on the location of those spaces and the number of floors in the parking garage. Inasmuch as the contract was negotiated between sophisticated business people negotiating at arm's length, Supreme Court appropriately refrained from reading language into the contract that the parties agreed the City would provide plaintiff with 235 "covered" parking spaces (*see Vermont Teddy Bear Co. v 538 Madison Realty Co.*, 1 NY3d 470, 475 [2004]). Because this is a declaratory judgment action, Supreme Court should have declared the rights of the parties rather than simply dismissing the complaint (*see Lanza v Wagner*, 11 NY2d 317, 340 [1962], *appeal dismissed* 371 US 74, *cert denied* 371 US 901 [1963]).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and R.S. SMITH concur in memorandum; Judge READ taking no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

GORGONIO BALBUENA et al., Appellants, v IDR REALTY LLC et al., Defendants and Third-Party Plaintiffs. TAMAN MANAGEMENT CORP., Third-Party Defendant-Respondent. ELIOT SPITZER, as Attorney General of the State of New York, Intervenor-Appellant.

STANISLAW MAJLINGER, Respondent, v CASSINO CONTRACTING CORP. et al., Appellants, et al., Defendants. ELIOT SPITZER, as Attorney General of the State of New York, Intervenor.

Submitted January 3, 2006; decided January 10, 2006

Reported below, 13 AD3d 285; 25 AD3d 14.

Motion by Emerald Isle Immigration Center et al. for leave to appear amici curiae on the appeals herein granted only to the extent that two copies of the brief may be served and 24 copies filed within seven days.

Judge READ taking no part.

In the Matter of CITY OF NEW YORK, Respondent, Relative to Acquiring Title to Certain Real Property for the Construction of the THIRD WATER TUNNEL, SHAFT 30B. GRAND LAFAYETTE PROPERTIES LLC, Appellant.

Submitted December 19, 2005; decided January 10, 2006

Reported below, 18 AD3d 342.

Motion by Real Estate Board of New York, Inc. for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

Judge READ taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NORMAN BRADLEY, Appellant.

Submitted December 27, 2005; decided January 10, 2006

Reported below, 22 AD3d 33.

Motion for assignment of counsel granted and Steven Banks, Esq., Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

Judge READ taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v UNIQUE
DIVINE, Appellant.

Submitted December 19, 2005; decided January 10, 2006

Reported below, 21 AD3d 767.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 45 West 45th Street, 7th Floor, New York, NY 10036 assigned as counsel to the appellant on the appeal herein.

Judge READ taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WIN-
STON NICHOLSON, Appellant.

Submitted December 19, 2005; decided January 10, 2006

Reported below, 15 AD3d 237.

Motion by Honorable Richard A. Brown, Queens County District Attorney, for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

Judge READ taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v STEPHEN
M. PACER, Respondent.

Submitted December 19, 2005; decided January 10, 2006

Reported below, 21 AD3d 192.

Motion by New York State Association of Criminal Defense Lawyers et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

Judge READ taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMAL
PETTY, Appellant.

Submitted December 19, 2005; decided January 10, 2006

Reported below, 21 AD3d 828.

Motion for assignment of counsel granted and Steven Banks, Esq., Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

Judge READ taking no part.

In the Matter of POUGHKEEPSIE PROFESSIONAL FIREFIGHTERS' ASSOCIATION, LOCAL 596, IAFF, AFL-CIO-CLC, et al., Appellants, v NEW YORK STATE PUBLIC EMPLOYMENT RELATIONS BOARD et al., Respondents.

Submitted January 3, 2006; decided January 10, 2006

Reported below, 16 AD3d 797.

Motion by New York State Conference of Mayors and Municipal Officials for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

Judge READ taking no part.

In the Matter of POUGHKEEPSIE PROFESSIONAL FIREFIGHTERS' ASSOCIATION, LOCAL 596, IAFF, AFL-CIO-CLC, et al., Appellants, v NEW YORK STATE PUBLIC EMPLOYMENT RELATIONS BOARD et al., Respondents.

Submitted December 27, 2005; decided January 10, 2006

Reported below, 16 AD3d 797.

Motion by New York State Professional Firefighters Association, I.A.F.F., AFL-CIO for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

Judge READ taking no part.

BERNARD J. SORRENTINO, Appellant, v MIKE MASELLY et al., Respondents.

Submitted November 21, 2005; decided January 10, 2006

Motion, insofar as it seeks leave to appeal from the Appellate Division order dismissing the appeal to that Court from the order of Supreme Court dismissing the complaint, dismissed upon

the ground that appellant has failed to demonstrate timeliness as required by section 500.22 (b) (2) of the Rules of Practice of the Court of Appeals (22 NYCRR 500.22 [b] [2]); motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Judge READ taking no part.

DAVID A. SPARKS, Respondent, v ESSEX HOMES OF WNY, INC., et al., Defendants. ESSEX HOMES OF WNY, INC., Third-Party Plaintiff-Respondent, v ALUMINUM GUTTERS, Doing Business as NIAGARA GUTTERS, Third-Party Defendant-Appellant.

Submitted November 28, 2005; decided January 10, 2006

Reported below, 20 AD3d 904, 905, 906.

Motion to expand the record on appeal denied. Motion, insofar as it seeks leave to appeal from the Appellate Division order denying the motion to enlarge the record on appeal in that Court, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

Judge READ taking no part.

TYMEIK WILLIAMS, Appellant, v NASSAU COUNTY MEDICAL CENTER et al., Respondents.

Submitted January 3, 2006; decided January 10, 2006

Reported below, 13 AD3d 363.

Motion by New York City Health and Hospitals Corporation for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

Judge READ taking no part.

In the Matter of KENNETH CAMERON, Appellant, v JOHN CATALDO et al., Respondents.

Submitted November 21, 2005; decided January 12, 2006

Reported below, 19 AD3d 1183.

Motion, insofar as it seeks leave to appeal from the Appellate Division judgment dismissing the petition, dismissed as untimely (*see* CPLR 5513 [b]); motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of DARNELL H., a Child Alleged to be Abused and Neglected. ERIE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; ROCHELLE C., Appellant.

Submitted November 28, 2005; decided January 12, 2006

Reported below, 17 AD3d 1176.

Motion for leave to appeal dismissed as untimely (CPLR 5513 [b]; *see Eaton v State of New York*, 76 NY2d 824 [1990]).

WILLIAM MITCHELL, Appellant, v STATE OF NEW YORK, Respondent.

Submitted November 7, 2005; decided January 12, 2006

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic.

WILLIAM MITCHELL, Appellant, v STATE OF NEW YORK, Respondent.

Submitted November 14, 2005; decided January 12, 2006

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of TOWN OF ORANGETOWN et al., Respondents, v
ORANGETOWN POLICEMEN'S BENEVOLENT ASSOCIATION et al.,
Appellants.

Submitted January 9, 2006; decided January 12, 2006

Reported below, 18 AD3d 879.

Motion by New York State Conference of Mayors and Municipal Officials for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

In the Matter of PATROLMEN'S BENEVOLENT ASSOCIATION OF THE
CITY OF NEW YORK, INC., Appellant, v NEW YORK STATE
PUBLIC EMPLOYMENT RELATIONS BOARD et al., Respondents.

Submitted January 9, 2006; decided January 12, 2006

Reported below, 13 AD3d 879.

Motion by New York State Conference of Mayors and Municipal Officials for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

In the Matter of PATROLMEN'S BENEVOLENT ASSOCIATION OF THE
CITY OF NEW YORK, INC., Appellant, v NEW YORK STATE
PUBLIC EMPLOYMENT RELATIONS BOARD et al., Respondents.

Submitted January 9, 2006; decided January 12, 2006

Reported below, 13 AD3d 879.

Motion by Police Benevolent Association of the New York State Troopers Inc. et al. for leave to file a brief amici curiae on the appeal herein granted. Two copies of the brief may be served and 24 copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MI-
CHAEL NELSON, Appellant.

Submitted January 9, 2006; decided January 12, 2006

Reported below, 21 AD3d 861.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th

Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v COREY SMITH, Appellant.

Submitted January 9, 2006; decided January 12, 2006

Reported below, 23 AD3d 280.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. RAMON ALVAREZ, Appellant, v NEW YORK STATE DIVISION OF PAROLE et al., Respondents.

Submitted September 26, 2005; decided January 12, 2006

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (NY Const, art VI, § 3 [b] [2]; § 5 [b]; CPLR 5601 [b] [2]). Motion for poor person relief dismissed as academic.

In the Matter of POUGHKEEPSIE PROFESSIONAL FIREFIGHTERS' ASSOCIATION, LOCAL 596, IAFF, AFL-CIO-CLC, et al., Appellants, v NEW YORK STATE PUBLIC EMPLOYMENT RELATIONS BOARD et al., Respondents.

Submitted January 9, 2006; decided January 12, 2006

Reported below, 16 AD3d 797.

Motion by Hartsdale Fire District et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

RICCARDO-JURGEN SPADOLA, Appellant, v 260/261 MADISON EQUITIES CORP. et al., Respondents. (And Another Action.) (And a Third-Party Action.)

CORPORATE FLOORS, INC., Second Third-Party Plaintiff-Respondent, v ACCU SERV FLOOR COVERING MANAGEMENT, Second Third-Party Defendant-Respondent-Appellant. (And Another Third-Party Action.)

Submitted October 31, 2005; decided January 12, 2006

Reported below, 19 AD3d 321.

Motion for leave to appeal by Riccardo-Jurgen Spadola denied. Cross motion for leave to appeal by Accu Serv Floor Covering Management dismissed upon the ground that as to that party the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

SUSAN BELL, Also Known as SUSAN SMYTH BELL, Individually and as Executor of ROBERT A. BELL, Also Known as ROBERT BELL, Deceased, Respondent, v NEW YORK CITY TRANSIT AUTHORITY et al., Appellants.

Submitted November 28, 2005; decided January 17, 2006

Reported below, 21 AD3d 299.

Motion for leave to appeal dismissed upon the ground that appellants, having stipulated to an increase in damages at Supreme Court, are not parties aggrieved (CPLR 5511; *see Plotkin v New York City Health & Hosps. Corp.*, 88 NY2d 917 [1996]).

BETH ISRAEL MEDICAL CENTER et al., Appellants, v DEPARTMENT OF HEALTH OF THE STATE OF NEW YORK et al., Respondents, and EXCELLUS HEALTH PLAN, INC., Doing Business as BLUE CROSS AND BLUE SHIELD OF CENTRAL NEW YORK, et al., Intervenor-Respondents.

Submitted December 5, 2005; decided January 17, 2006

Reported below, 18 AD3d 367.

Motion by Healthcare Association of New York State for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of MICHAEL L. GOLDMAN (Admitted as MICHAEL LARRY GOLDMAN), a Suspended Attorney, Appellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted January 17, 2006; decided January 17, 2006

Reported below, 24 AD3d 29.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (CPLR 5601).

THE PEOPLE OF THE STATE OF NEW YORK, Appellant-Respondent,
v BAUMANN & SONS BUSES, INC., Defendant-Respondent.

Submitted December 27, 2005; decided January 17, 2006

Motion to dismiss appeal denied.

In the Matter of PROFESSIONAL STAFF CONGRESS-CITY UNIVERSITY OF NEW YORK, Respondent, v NEW YORK STATE PUBLIC EMPLOYMENT RELATIONS BOARD et al., Appellants.

Submitted December 5, 2005; decided January 17, 2006

Reported below, 21 AD3d 10.

Motion by the City of New York for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

**MOTIONS FOR EXTENSION OF TIME TO APPLY
FOR PERMISSION TO APPEAL PURSUANT TO CPL 460.20**

Decided January 10, 2006

People v Smith

3d Dept: 21 AD3d 1186

granted